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| #  | Case Name                              | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
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| 1. | 2023-1324110<br>Whitten vs.<br>Peacock | <p>Plaintiff Lara Whitten's Motion to Set Aside Dismissal is denied.</p> <p>Plaintiff moves under CCP section 473 for an order setting aside the dismissal entered on 1/8/26 (ROA 64) The record reflects this action was ordered to arbitration on or about 9/1/23, and these proceedings were stayed pending the arbitration. (ROA 25.) On 1/8/26, the parties appeared before the court for a status conference re: the arbitration proceedings. The Court granted Defendants' oral motion to dismiss these proceedings based upon the finding that the arbitration had been dismissed. (ROA 64) Relief under section 473 is not available, because the dismissal was not the result of "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Rather, these proceedings were dismissed in accordance with the rule that, if the arbitrator dismisses the arbitration, the court should "enforce[] it <i>by itself dismissing</i> the underlying civil action in accordance with the terms of [the Code]." (<i>Young v. Ross-Loos Medical Group, Inc.</i> (1982) 135 Cal.App.3d 669, 674.)</p> <p>As such, Plaintiff's motion for relief from dismissal is denied.</p> |

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|    |                                              | <p>The Clerk shall give notice of the ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 2. | 2024-1432981<br>Le vs. Omni<br>Invictus, LLC | <p>The Court denies Plaintiff Lucy Pham Le’s Motion to vacate the May 28, 2025, Order granting Defendants Omni Invictus LLC, Sandor &amp; Tompkins, Jennifer Tompkins, and Holly Monte’s Anti-SLAPP Motion.</p> <p>Plaintiff moves under Code of Civil Procedure §§ 473(b) and 473(d) on the grounds that the Court's order was based on a legal error and is “void or legally improper”.</p> <p>Section 473(b) allows the court in its discretion to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect”. (CCP § 473.)</p> <p>Here, Plaintiff does not argue her mistake, inadvertence, surprise, or excusable neglect. This section is inapplicable.</p> <p>Section 473(d) provides that the court “may, on motion of either party after notice to the other party, set aside any void judgment or order.” Void judgments, e.g., where the court “lacked subject matter jurisdiction, lacked personal jurisdiction over the defendant, or granted relief the court had no power to grant,” are distinct from merely voidable judgments, e.g., where the court “exceeds its jurisdiction by acting contrary to its statutory duties.” Voidable judgments are not subject to CCP § 473(d). (<i>W. Bradley Elec., Inc. v. Mitchell Engineering</i> (2024) 100 CA5th 1, 13—settlement and judgment not authorized by client are only voidable (dicta).)</p> <p>Here, the 5/28/25 Order granting Defendants Omni Invictus LLC, Sandor &amp; Tompkins, Jennifer Tompkins, and Holly Monte’s Special Motion to Strike (Anti-SLAPP) as to Plaintiff’s Complaint is not void.</p> <p>The Court has already denied Plaintiff’s Motion for reconsideration. (ROA 162.) The instant does not provide a proper legal basis for another round of reconsideration.</p> <p>Thus, the Motion is denied.</p> <p>Plaintiff is ordered to serve notice.</p> |
| 3. | 2021-1178346<br>HONOR<br>FINANCE,<br>LLC vs. | <p>The general demurrer by Defendant Spireon, Inc. (“Defendant”) to the second, fourth, fifth, and sixth causes of action alleged in the First Amended Complaint (“FAC”) filed by Plaintiffs Honor Finance, LLC (“Honor Finance”) and Honor Finance Holdings, LLC (“Honor</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |